

24STCV13581 24STCV13581

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 24STCV13581 Hearing Date: August 31, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Graciela Fernandez

, et al.;

Plaintiffs,

vs.

Decartes Financial

Corporation

, et al.;

Defendants.

Case No.:

24STCV13581

Hearing Date:

August 31, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion

for Determination of Good Faith Settlement

MOVING PARTY: Defendants Descartes Financial
Corporation and Descartes Financial, LTD

RESPONDING

PARTY: No response

Motion

for Determination of Good Faith Settlement

The court considered the moving
papers filed in connection with this motion.

DISCUSSION

Defendants

Descartes Financial Corporation and Descartes Financial, LTD ("Defendants")
move the court for an order determining that the settlements between Defendants
and plaintiffs Daminuque Ledane Wilson, Janae Gomez, Ja'Saih Gomez, Khylee
Wilson, and Ayanna Wilson ("Plaintiffs") are made in good faith pursuant to
Code of Civil Procedure sections 877 and 877.6.

Any party to an

action "in which it is alleged that two or more parties are joint tortfeasors
or co obligors on a contract debt" is entitled to a hearing "on the issue of
the good faith of a settlement entered into by the plaintiff or other claimant
and one or more alleged tortfeasors or co-obligors, upon giving notice in the
manner provided in subdivision (b) of Section 1005." (Code Civ. Proc. §
877.6(a)(1).) There is no precise yardstick for measuring the "good faith" of a

settlement with one of several tortfeasors, but it must harmonize the public policy favoring settlements with the competing public policy favoring equitable sharing of costs among tortfeasors. (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499 [setting forth factors for consideration in determining good faith of settlement].) The party contesting the settlement bears the burden of proving that it is in bad faith. (Code Civ. Proc. §877.6(d).)

The court finds,
in consideration of the Tech-Bilt factors and the absence of any opposition to this motion, that the settlements between Defendants and Plaintiffs were made in good faith.

ORDER

The court GRANTS defendants
Descartes Financial Corporation and Descartes Financial, LTD's motion for determination of good faith settlement.

The court finds that
the settlements between (1) plaintiffs Daminuque Ledane Wilson, Janae Gomez, Ja'Saih Gomez, Khylee Wilson, and Ayanna Wilson, and (2) defendants Descartes Financial Corporation and Descartes Financial, LTD were made in good faith pursuant to Code of Civil Procedure section 877.6.

Pursuant to Code
of Civil Procedure section 877.6, subdivision (c), the court's order shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.

The court orders defendants
Descartes Financial Corporation and Descartes Financial, LTD to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 31, 2026

Robert B. Broadbelt III

Judge of the Superior Court